INSTALMENT SALE AGREEMENT

Agreement reference AF-TEST-0001 · prepared 13 October 2026

1. THE SELLER (CREDIT PROVIDER)

Name	Test Asset Lender (Pty) Ltd
Registration number	2000/000000/07
NCR registration	NCRCP00000
Registered office	1 Test Street, Testville, 0001

2. THE PURCHASER

Name	TEST Earthmoving (Pty) Ltd
Type	Company (Pty) Ltd
Registration number	2099/000001/07
Trading as	TEST Plant
VAT number	4999999999
Address	2 Test Road, Testburg, Gauteng, 0002

3. THE GOODS

Class	Excavator
Make and model	TESTMAKE EX-200
Year	2026
Serial / PIN	TESTSERIAL0001
VIN	TEST0000000000001
Engine number	TESTENGINE0001

4. THE SUPPLIER

Supplier	TEST Plant Sales (Pty) Ltd
Registration number	2099/000002/07
VAT number	4888888888

5. PRICE AND FINANCE

Cash price excl. VAT	R 1,500,000.00
VAT	R 225,000.00
Cash price incl. VAT	R 1,725,000.00
Deposit	R 172,500.00
Trade-in	R 0.00
Fees financed	R 0.00
Amount financed	R 1,552,500.00
Balloon (final payment)	R 300,000.00
Contract rate	Prime plus 1.00%, linked to Prime (Prime of 10.75% effective 29 May 2026): 11.75% a year (nominal)

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Interest	Accrues daily (actual/365) on the reducing balance
Repayment structure	Annual seasonal, 48 payments
Base instalment	R 32,503.12
Total interest	R 437,662.47
Total payable	R 1,990,162.47
Schedule start date	31 December 2026
Default interest on arrears	Contract rate plus 2.00% a year
Collection fee per missed instalment	R 450.00

6. REPAYMENT SCHEDULE

No.	Due date	Payment	Interest	Capital	Balloon	Balance
1	31 January 2027	R 16,251.56	R 15,493.10	R 758.46		R 1,551,741.54
2	28 February 2027	R 16,251.56	R 13,986.93	R 2,264.63		R 1,549,476.91
3	31 March 2027	R 130,012.48	R 15,462.93	R 114,549.55		R 1,434,927.36
4	30 April 2027	R 130,012.48	R 13,857.86	R 116,154.62		R 1,318,772.74
5	31 May 2027	R 16,251.56	R 13,160.63	R 3,090.93		R 1,315,681.81
6	30 June 2027	R 16,251.56	R 12,706.24	R 3,545.32		R 1,312,136.49
7	31 July 2027	R 16,251.56	R 13,094.40	R 3,157.16		R 1,308,979.33
8	31 August 2027	R 16,251.56	R 13,062.90	R 3,188.66		R 1,305,790.67
9	30 September 2027	R 16,251.56	R 12,610.72	R 3,640.84		R 1,302,149.83
10	31 October 2027	R 16,251.56	R 12,994.74	R 3,256.82		R 1,298,893.01
11	30 November 2027	R 16,251.56	R 12,544.10	R 3,707.46		R 1,295,185.55
12	31 December 2027	R 16,251.56	R 12,925.24	R 3,326.32		R 1,291,859.23
13	31 January 2028	R 16,251.56	R 12,892.05	R 3,359.51		R 1,288,499.72
14	29 February 2028	R 16,251.56	R 12,028.94	R 4,222.62		R 1,284,277.10
15	31 March 2028	R 130,012.48	R 12,816.38	R 117,196.10		R 1,167,081.00
16	30 April 2028	R 130,012.48	R 11,271.12	R 118,741.36		R 1,048,339.64
17	31 May 2028	R 16,251.56	R 10,461.86	R 5,789.70		R 1,042,549.94
18	30 June 2028	R 16,251.56	R 10,068.46	R 6,183.10		R 1,036,366.84
19	31 July 2028	R 16,251.56	R 10,342.37	R 5,909.19		R 1,030,457.65
20	31 August 2028	R 16,251.56	R 10,283.40	R 5,968.16		R 1,024,489.49
21	30 September 2028	R 16,251.56	R 9,894.04	R 6,357.52		R 1,018,131.97
22	31 October 2028	R 16,251.56	R 10,160.40	R 6,091.16		R 1,012,040.81
23	30 November 2028	R 16,251.56	R 9,773.82	R 6,477.74		R 1,005,563.07
24	31 December 2028	R 16,251.56	R 10,034.97	R 6,216.59		R 999,346.48
25	31 January 2029	R 16,251.56	R 9,972.93	R 6,278.63		R 993,067.85
26	28 February 2029	R 16,251.56	R 8,951.21	R 7,300.35		R 985,767.50
27	31 March 2029	R 130,012.48	R 9,837.42	R 120,175.06		R 865,592.44
28	30 April 2029	R 130,012.48	R 8,359.49	R 121,652.99		R 743,939.45
29	31 May 2029	R 16,251.56	R 7,424.11	R 8,827.45		R 735,112.00
30	30 June 2029	R 16,251.56	R 7,099.37	R 9,152.19		R 725,959.81
31	31 July 2029	R 16,251.56	R 7,244.68	R 9,006.88		R 716,952.93
32	31 August 2029	R 16,251.56	R 7,154.80	R 9,096.76		R 707,856.17
33	30 September 2029	R 16,251.56	R 6,836.15	R 9,415.41		R 698,440.76
34	31 October 2029	R 16,251.56	R 6,970.06	R 9,281.50		R 689,159.26
35	30 November 2029	R 16,251.56	R 6,655.58	R 9,595.98		R 679,563.28
36	31 December 2029	R 16,251.56	R 6,781.67	R 9,469.89		R 670,093.39
37	31 January 2030	R 16,251.56	R 6,687.16	R 9,564.40		R 660,528.99
38	28 February 2030	R 16,251.56	R 5,953.81	R 10,297.75		R 650,231.24
39	31 March 2030	R 130,012.48	R 6,488.95	R 123,523.53		R 526,707.71
40	30 April 2030	R 130,012.48	R 5,086.70	R 124,925.78		R 401,781.93
41	31 May 2030	R 16,251.56	R 4,009.56	R 12,242.00		R 389,539.93
42	30 June 2030	R 16,251.56	R 3,762.00	R 12,489.56		R 377,050.37
43	31 July 2030	R 16,251.56	R 3,762.76	R 12,488.80		R 364,561.57
44	31 August 2030	R 16,251.56	R 3,638.12	R 12,613.44		R 351,948.13
45	30 September 2030	R 16,251.56	R 3,398.95	R 12,852.61		R 339,095.52
46	31 October 2030	R 16,251.56	R 3,383.99	R 12,867.57		R 326,227.95

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6. REPAYMENT SCHEDULE (continued)

No.	Due date	Payment	Interest	Capital	Balloon	Balance
47	30 November 2030	R 16,251.56	R 3,150.56	R 13,101.00		R 313,126.95
48	31 December 2030	R 316,251.79	R 3,124.84	R 13,126.95	R 300,000.00	R 0.00

7. TERMS AND CONDITIONS

7.1 Sale of the goods and ownership

The seller in section 1 ("the Seller") sells to the purchaser in section 2 ("the Purchaser"), and the Purchaser buys, the goods described in section 3 ("the Goods") on the terms of this agreement ("this Agreement"). This Agreement is an instalment sale: the price is paid in the payments set out in the repayment schedule in section 6 ("the Schedule").

Ownership of the Goods stays with the Seller until the Purchaser has paid every amount owing under this Agreement, including the final payment of the Schedule and any amount owing under clauses 7.8 and 7.9. Ownership then passes to the Purchaser without any further act. Until then the Purchaser may not sell, let, lend, pledge or encumber the Goods or part with possession of them, and must not allow any lien, attachment or hypothec to arise over them.

The Purchaser chose the Goods and the supplier in section 4 ("the Supplier") itself. The Seller buys the Goods from the Supplier only to sell them to the Purchaser, is not the Supplier's agent, and gives no warranty about the condition, quality or fitness for purpose of the Goods. For as long as the Purchaser is not in breach of this Agreement, the Seller cedes to the Purchaser every warranty and claim it has against the Supplier or the manufacturer in respect of the Goods. A defect in the Goods, or a dispute with the Supplier, does not suspend or reduce any obligation of the Purchaser under this Agreement.

If the Goods are to be kept on premises the Purchaser does not own, the Purchaser must, before the Goods are brought there, notify the owner of the premises in writing that the Seller owns the Goods, and give the Seller a copy of that notice. The Goods must not be attached to land or to any other thing in a way that could transfer ownership of them by accession.

To the extent that the Consumer Protection Act 68 of 2008 applies to this Agreement or to the Goods, nothing in this Agreement limits any right the Purchaser has under that Act, including sections 55 and 56.

7.2 Delivery, acceptance and risk

The Supplier delivers the Goods to the Purchaser at the Purchaser's cost. On delivery the Purchaser must inspect the Goods and sign a delivery and acceptance certificate confirming that the Goods, with the identifying numbers shown in section 3, were delivered complete and in good order. The Seller pays the Supplier only after it has received that certificate and the other documents it requires for payment, and is not liable for any delay in delivery or for any failure of the Supplier to deliver.

All risk of loss, theft, damage or destruction of the Goods, from any cause, passes to the Purchaser on delivery and stays with it until ownership passes under clause 7.1. No loss, theft, damage or destruction releases the Purchaser from any obligation under this Agreement.

The Purchaser indemnifies the Seller against every claim by any person arising from the possession, use or operation of the Goods.

7.3 Payment

The Purchaser must pay the deposit shown in section 5, to the Supplier or to the Seller as the Seller directs, before the Seller pays the Supplier, and each payment in the Schedule in full on its due date. The payment due on 31 December 2030 includes the balloon of R 300,000.00. Payments are made by debit order or by electronic transfer into the bank account the Seller designates in writing, without any deduction or set-off, and count as paid only when the Seller receives them in cleared funds.

The Seller applies every amount it receives under this Agreement in this order: first to default interest under clause 7.9; then to interest due under clause 7.4; then to collection fees under clause 7.9; then to any other fees and charges due; then to capital due; and last to payments not yet due, in the order of their due dates.

The Seller issues a tax invoice for the cash price of the Goods including value-added tax, as shown in section 5. Interest under this Agreement is consideration for an exempt financial service under sections 2 and 12(a) of the Value-Added Tax Act 89 of 1991. Any fee under this Agreement bears value-added tax where that Act requires it.

7.4 Interest and changes to the contract rate

Interest accrues daily on the outstanding capital at the contract rate ("the Contract Rate"), calculated on the actual number of days elapsed in a year of 365 days, and is payable as part of each payment in the Schedule.

The Contract Rate is linked to a reference rate: it is Prime plus 1.00% a year. On the schedule start date the reference rate is 10.75% (effective 29 May 2026), so the Contract Rate is 11.75% a year (nominal). "Prime" means the predominant prime overdraft rate of South African banks as published by the South African Reserve Bank.

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Whenever the reference rate changes, the Contract Rate changes by the same number of percentage points with effect from the date on which the changed reference rate takes effect, and clause 7.5 applies. The margin above the reference rate does not change during the term of this Agreement.

7.5 Commencement and recalculation of the schedule

This Agreement binds the parties once both have signed it. The Schedule runs from the schedule start date shown in section 5, 31 December 2026, by which date the Seller intends to pay the Supplier, and interest accrues from that date.

If the Seller has not paid the Supplier by the schedule start date, for any reason, or if the Contract Rate in force on that date differs from the rate shown in section 5, the Seller may cancel this Agreement by written notice to the Purchaser. Neither party then has any claim against the other under this Agreement, except that the Seller must repay any amount the Purchaser paid to the Seller under it. The parties may then conclude a new agreement with a new schedule.

When the Contract Rate changes under clause 7.4, the Seller recalculates the payments falling due after the change so that the number of payments, their due dates, their relative sizes under the repayment structure in section 5, and the balloon all stay the same, and the outstanding capital is repaid at the new Contract Rate by the last due date. Interest at the new Contract Rate accrues from the date of the change. The Seller notifies the Purchaser in writing of the new payment amounts. The Seller may keep a payment that falls due before that notice reaches the Purchaser at its previous amount; the resulting difference in interest is carried in the balance and spread over the recalculated payments. The recalculated payments replace those in section 6 from the date of the change.

7.6 Insurance of the goods

From delivery until ownership passes, the Purchaser must at its own cost keep the Goods comprehensively insured, for their full replacement value, with an insurer registered under the Insurance Act 18 of 2017 and acceptable to the Seller, against loss, theft, damage, fire and the other risks usually insured for goods of their kind, and against third-party liability where the Goods are used on public roads. The Seller's interest as owner must be noted on the policy, with the Seller as first loss payee.

The Purchaser must give the Seller proof of the insurance before the Seller pays the Supplier and proof of renewal on request, pay every premium on time, and do nothing that could entitle the insurer to avoid or reduce a claim. The Purchaser cedes to the Seller all its rights under the policy to the extent of the Seller's interest.

If the Purchaser does not insure the Goods as this clause requires, the Seller may (but need not) insure them, and the Purchaser must repay the premium on demand.

The Purchaser must report any loss, theft or damage to the Seller and to the insurer within 48 hours of becoming aware of it. The Seller applies insurance proceeds it receives to the repair or replacement of the Goods or, after a total loss and at its choice, towards the amounts owing under this Agreement, and pays any surplus to the Purchaser.

7.7 Use, maintenance and location of the goods

The Purchaser must use the Goods carefully, lawfully and only for its business, operated by competent and, where the law requires it, licensed operators, and within the limits the manufacturer specifies.

The Purchaser must at its own cost keep the Goods in good order and repair, have them serviced as the manufacturer's service schedule requires, keep the service records and show them to the Seller on request, and keep every licence, registration and roadworthy certificate the Goods need. Where the Goods are registrable, the Seller is recorded as titleholder and the Purchaser as owner. The Purchaser may not alter the Goods, or remove or change any identifying number on them, without the Seller's written consent.

The Purchaser must keep the Goods at the Purchaser's address in section 2 (2 Test Road, Testburg, Gauteng, 0002), or at another place in the Republic of South Africa that it has notified to the Seller in writing beforehand, and may not take them out of the Republic without the Seller's written consent. The Seller may inspect the Goods at any reasonable time on reasonable notice. If the Seller requires it, the Purchaser must at its cost have a tracking device fitted to the Goods and keep its subscription active until ownership passes.

The Purchaser must immediately notify the Seller in writing if any person attaches or claims the Goods, and must tell that person that the Seller owns them.

7.8 Breach and remedies

Each of the following is an event of default: (a) the Purchaser fails to pay any amount on its due date and does not pay it within 7 days after the Seller's written demand; (b) the Purchaser breaches any other term of this Agreement and does not remedy the breach within 14 days after the Seller's written demand; (c) the Purchaser is placed in liquidation, is sequestrated or deregistered, or (for a trust or partnership) is dissolved or its trustees or partners lose their authority to act, or it compromises or tries to compromise with its creditors generally; (d) a judgment against the Purchaser remains unsatisfied for 7 days; (e) any information the Purchaser or a surety gave the Seller in connection with this Agreement was materially incorrect; (f) a surety for the Purchaser's obligations dies, is sequestrated, or disputes the suretyship; (g) the Goods are lost, attached, or removed from the Republic of South Africa without the Seller's written consent. Business rescue proceedings are not of themselves an event of default; while they last, section 133 of the Companies Act 71 of 2008 limits the Seller's remedies.

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On an event of default the Seller may, without limiting any other right it has by law: (a) claim immediate payment of the Settlement Amount under clause 7.10 and every other amount owing; or (b) cancel this Agreement, take possession of the Goods, and claim as damages the Settlement Amount on the date of cancellation, together with the costs under clause 7.9, less the net proceeds of the Goods credited under this clause. The Seller takes possession of the Goods only with the Purchaser's written consent given at that time or under an order of court.

The Purchaser may, with the Seller's written consent, return the Goods to the Seller voluntarily. Returning the Goods does not by itself end the Purchaser's liability under this Agreement.

When the Seller has possession of the Goods after an event of default or a voluntary return, it may sell them by public auction or private treaty for the best price reasonably obtainable after a valuation. The net proceeds (the price less the costs of recovery, storage, transport, valuation, repair and sale that the Seller deducts from them) are credited to the Purchaser's account on the date they are applied, against the amount then owing. The Purchaser must pay any shortfall on demand, and the Seller pays any surplus to the Purchaser. While it recovers and sells the Goods the Seller may, without waiving any right, suspend the default interest and collection fees under clause 7.9.

Cancellation does not affect the Seller's right to amounts that fell due before it. The Seller keeps the payments it has received; they have already reduced the capital counted in the Settlement Amount.

7.9 Default interest and collection costs

If a payment is not paid in full on its due date, the Purchaser pays default interest on the overdue amount (the unpaid capital and unpaid interest of every payment past its due date) from the day after the due date until it is paid, at the Contract Rate in force from time to time plus 2.00% a year. Default interest is calculated daily on the actual number of days elapsed in a year of 365 days and is debited monthly. No default interest is charged on fees, collection fees, costs or default interest. As the common-law in duplum rule requires, interest in arrears stops running while the unpaid interest equals the unpaid capital.

For each payment that remains unpaid at the end of its due date, the Purchaser pays a collection fee of R 450.00, including any value-added tax, which is debited on the day after the due date.

The Purchaser must pay, on demand, all legal costs the Seller incurs in enforcing this Agreement, on the scale as between attorney and own client, and all tracing, collection, recovery, storage, transport, valuation, repair and sale costs the Seller reasonably incurs because of an event of default. The Seller may deduct those costs from sale proceeds under clause 7.8 or debit them to the Purchaser's account.

7.10 Early settlement

The Purchaser may settle this Agreement at any time by paying the Settlement Amount. On request the Seller gives the Purchaser a written settlement quotation stating the Settlement Amount on a date.

The "Settlement Amount" on a date is the total of: (a) every amount due and unpaid on that date, including default interest, collection fees and costs; (b) the capital outstanding on that date, including the capital of the balloon; and (c) the interest accrued on that capital from the last due date to that date at the Contract Rate. Interest that has not yet accrued is not payable, and no early-settlement fee is charged.

Ownership of the Goods passes to the Purchaser under clause 7.1 when the Seller receives the Settlement Amount in cleared funds.

7.11 Cession and assignment

The Seller may cede, assign, sell or pledge any or all of its rights under this Agreement, delegate any of its obligations, and transfer its ownership of the Goods, to any person, without the Purchaser's consent and without splitting its claims being an objection. The Seller may disclose information about this Agreement and the Purchaser to any prospective cessionary or funder that undertakes to keep it confidential.

The Purchaser may not cede, assign, delegate or otherwise transfer any right or obligation under this Agreement, or let the Goods or part with possession of them, without the Seller's prior written consent.

7.12 Domicilium and notices

The parties choose the following addresses as their domicilium citandi et executandi, where notices and legal process may be delivered: the Seller, its registered office at 1 Test Street, Testville, 0001; the Purchaser, 2 Test Road, Testburg, Gauteng, 0002. A party may change its domicilium to another physical address in the Republic of South Africa by written notice to the other, effective 7 days after the notice is received.

A notice under this Agreement must be in writing. A notice delivered by hand to a party's domicilium is received on delivery; one sent by prepaid registered post to it is received on the 7th business day after posting; and one sent by email to an address the receiving party has designated in writing for notices is received on the business day after it is sent. A notice actually received is effective even if it was not delivered in one of these ways. "Business day" means any day other than a Saturday, Sunday or public holiday in South Africa.

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7.13 General

This Agreement, with its sections 1 to 6, is the whole agreement between the parties about its subject matter. No variation, addition or cancellation of it, and no waiver of any right under it, has any effect unless it is in writing and signed by both parties, except a recalculation under clause 7.5 or a notice under clause 7.12. No indulgence or delay by the Seller is a waiver of any right or prevents it from enforcing any right later.

A certificate signed by any manager of the Seller, whose appointment need not be proved, stating the amount the Purchaser owes under this Agreement and that it is due, is prima facie proof of its contents for all purposes, including summary judgment and provisional sentence.

The Purchaser consents, under section 45 of the Magistrates' Courts Act 32 of 1944, to the jurisdiction of any magistrate's court having jurisdiction over it in any proceedings arising from this Agreement, even if the amount claimed exceeds that court's jurisdiction. The Seller may instead bring proceedings in any other competent court. This Agreement is governed by the law of the Republic of South Africa.

Each person who signs this Agreement for the Purchaser warrants that they are authorised to do so by a resolution of the Purchaser. If any provision of this Agreement is unenforceable, the remaining provisions stay in force.

The Purchaser consents to the Seller processing information about it, its directors, members, trustees, partners and sureties to conclude, administer, enforce and fund this Agreement, including sharing it with credit bureaux, insurers, funders and the Seller's agents, in accordance with the Protection of Personal Information Act 4 of 2013.

This Agreement may be signed in counterparts and by electronic signature.

8. SIGNATURES

For the purchaser, TEST Earthmoving (Pty) Ltd

_____ _____

TEST Director
Authorised signatory

Date

For the seller, Test Asset Lender (Pty) Ltd

_____ _____

Name:
Authorised signatory

Date

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